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Where Major California Education Bills Stand After Deadline For Approval Passes

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Several dozen TK-12 and higher education proposals were among the blitz of bills that the California Legislature approved by the Aug. 31 deadline. They include bills to ban a half-dozen chemical dyes from school meals — a national first — and to ban private colleges and universities from considering an applicant's donor or legacy ties as factors for admission. One bill that ran aground would have granted 14 weeks of maternity leave to teachers and staff at schools and colleges.

Gov. Gavin Newsom has until Sept. 30 to decide to sign or veto all the bills passed in the final days.

California School Food Safety Act: Assembly Bill 2316

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A groundbreaking bill that would ban food containing six synthetic dyes from being served in California schools passed the Legislature on Aug. 28.

Assembly Bill 2316, also known as the California School Food Safety Act, would prohibit schools from offering foods containing red dye 40, yellow dye 5, blue dye 1, green dye 3, blue dye 2 and yellow dye 6. These dyes are required to have a warning label in Europe.

The prohibition would not include food sold as part of a school fundraising event, if the sale takes place on campus at least a half-hour after the school day or is sold off campus.

Proponents relied on a 2021 report by the California Environmental Protection Agency's Office of Environmental Health Hazard Assessment that found that consumption of synthetic food dyes can result in hyperactivity and neurobehavioral problems in some children. It noted that the percentage of American children and adolescents diagnosed with attention deficit/hyperactivity disorder has increased from an estimated 6.1% to 10.2% during the past two decades.

"California has a responsibility to protect our students from chemicals that harm children and interfere with their ability to learn," said the bill's author, Assemblymember Jesse Gabriel, D-Encino. "As a lawmaker, a parent, and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to hyperactivity and neurobehavioral harms. This bill will empower schools to better protect the health and well-being of our kids and encourage manufacturers to stop using these harmful additives."

The legislation would be the first of its kind in the nation. If signed by Newsom, the bill would go into effect Dec. 31, 2027.

Data from the Center for Science in the Public Interest found that just 4.2% of school meal products and 2.5% of a la carte foods would be affected by the bill. The California Department of Education estimates the bill would cost the state $150,000 in the first year of implementation and $95,000 annually to comply with the bill's requirements.

— Diana Lambert

Creating homework policies: Assembly Bill 2999

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The Healthy Homework Act will encourage school districts, county-run schools and charter schools to bring more consistency and clarity to homework assignments that the bill's author, Assemblymember Pilar Schiavo believes has often been lacking.

"AB 2999 seeks to begin the conversation at the local level to develop homework policies based on what research is saying is equitable and beneficial to the academic success of students," said Schiavo, a Democrat from Santa Clarita, in northern San Fernando Valley.

Districts will be encouraged to develop a homework policy for all grades by the start of 2027-28, formally adopt them by a year later, and then update the policy every five years. The California Department of Education will create guidance on best practices for districts by Jan. 1, 2026. Earlier versions of the bill would have made the policy a requirement for districts.

Declarations in the bill make clear that homework can enhance learning — to a point. It cites research that found "the quality of homework is more important than the quantity assigned" and that students are more likely to complete homework that is "interesting, relevant, and valuable." Nearly two-thirds of 15,000 students surveyed reported homework helped them learn material in some or most classes, but half reported being assigned busywork. Beyond two hours each night, homework showed diminishing results, consuming time that could have been better spent elsewhere. A lack of internet access prevented one-fifth of students from completing their homework, according to the bill.

Among other factors, a district policy should consider grading practices — whether homework should be optional or graded, and include opportunities to complete missed assignments; developmental appropriateness; and individual needs of students with disabilities and English learners. Districts should include parents and students in creating the policy, bill said.

— John Fensterwald

More training for preschool teachers about multilingual learners: Assembly Bill 1947

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Teachers at state-subsidized preschools would get more days set aside for training and get training specifically for serving children who speak languages other than English, under Assembly Bill 1947.

If signed by the governor, the bill will increase the number of staff training days that all California State Preschool programs can hold, from two days to six days per year. If a preschool has at least 25% of students that speak a language other than English at home and holds at least three training days, then at least one of those days has to be focused on best practices for teaching those students.

The bill would give the state superintendent of public instruction until Aug. 1, 2025, to come up with regulations to implement the changes.

— Zaidee Stavely

Incorporating AI literacy into the K-12 curriculum: Assembly Bill 2876

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Artificial intelligence literacy would be incorporated into the state's curriculum frameworks and instructional materials for math, science and social science, under Assembly Bill 2876.

Understanding how to use and analyze artificial intelligence is viewed as an increasingly crucial skill for success in the workforce. That's why CalChamber sponsored a bill that also received support from dozens of local chambers of commerce throughout the state.

"Incorporating this information into existing curricula will dispel the stigma and mystique of the technology, not only helping students become more discerning and intentional users and consumers of AI, but also better positioning future generations of workers to succeed in an AI-driven workforce and hopefully inspiring the next generation of computer scientists," said CalChamber policy advocate Ronak Daylami, in a statement.

Additionally, the bill expands on a 2023 law promoting media literacy that was also authored by Assembly Marc Berman, D-Menlo Park. This bill, if signed by the governor, requires media literacy to be incorporated into revised instructional materials — which was missing from the prior bill.

— Emma Gallegos

Paid maternity leave for teachers: Assembly Bill 2901

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A bill that would have given California teachers and staff at school districts and colleges up to 14 weeks of paid pregnancy leave stalled in the final days of the legislative session.

Currently, teachers are exempt from paying into or benefiting from state disability insurance. They can take unpaid maternity leave, but most use vacation and sick time if they want a paid leave. The bill would have given school staff full pay if they miss work because of a pregnancy, miscarriage, childbirth, termination of pregnancy or recovery from these conditions.

Assembly Bill 2901 was ordered to the inactive file by Sen. Lena Gonzalez on Aug. 28. Because bills in the inactive file require a 24-hour public notice before being returned to the daily agenda, the bill could not be voted on before the legislative deadline Friday.

The bill was supported by the California Teachers Association (CTA)and more than 50 other organizations. CTA Secretary-Treasurer Erika Smith said the union is committed to winning pregnancy leave for educators and will work with the Legislative Women's Caucus to pass the legislation next year.

"The system is broken when one of the largest and predominantly female workforces in the state has zero days of guaranteed pregnancy leave," said Smith. "This is a fundamental standard for reproductive rights in most countries across the globe, and in many states across the nation. Paid pregnancy leave would not only address a disparity that follows women well into retirement, but help recruit and retain educators at a time when we face a severe staffing crisis for schools across our state."

The bill originally required school districts and community colleges to pay for the maternity leave, but it was later amended to shift the cost — estimated to be at least in the "high tens of millions" — to the state, according to the CTA. It would have gone into effect on Jan. 1, 2028, and only if funding was added to the state budget.

— Diana Lambert

Districts of choice: Senate Bill 897

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For 30 years, California has experimented with a school choice program that let parents enroll their children in nearby districts that opened up seats for outsiders. Now the little-known District of Choice program, which the Legislature has renewed seven times, will become permanent through the passage of Senate Bill 897, authored by

Sen. Josh Newman, D-Fullerton, if the governor signs the bill.

Only about 10,000 — about 0.2% — of the state's students annually have taken advantage of the program. Most attend a half-dozen, primarily small districts in Southern California.

Districts of choice must be open to all who apply, including students with disabilities, who may be more expensive to serve. To prevent wealthier, primarily white families from exiting their home districts, SB 897 adds some stipulations to existing restrictions to prevent racial disparities and financial impacts. After accommodating siblings of transferees, the next priorities will be foster, homeless and low-income children. Up to 1% of students in districts with more than 50,000 students and a maximum 10% of students in districts with fewer than 50,000 will be able to transfer annually. Districts with a negative or qualified financial status can limit the number of students who can leave under the program.

Walnut Valley Unified, a 14,000-student district in the San Gabriel Valley, has been the most active proponent, with 2,774 students –30% of the total –transferring there in 2023-24, likely drawn to its Chinese immersion schools and emphasis on the arts. Pomona Unified, in opposing the bill, argued it lost wealthier families in Diamond Bar, which borders both districts, to the program.

The California Department of Education has not promoted the program, and many neighboring districts appear to have taken a don't-poach-on-me, I-won't-tread-on-you approach to interdistrict transfers.

But in an era of declining enrollment, the district of choice program is an option to shore up finances and fill up seats. It's an open question whether districts will seize the opportunity.

— John Fensterwald

Improving teaching performance assessments: Senate Bill 1263

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Legislation that sets up a work group of experts to recommend revisions to the state's teaching performance assessments has passed the Senate.

The bill requires the California Commission on Teacher Credentialing to approve recommendations from the work group by July 1, 2025, and to implement them within three years from that date. The commission also would be required to make annual reports to the Legislature.

The once-controversial bill originally would have eliminated the requirement that teacher candidates pass a performance assessment to earn a credential, but was dramatically revised under pressure from education advocacy groups. In mid-June, Senate Bill 1263 was amended to retain the assessments. The bill requires the commission to convene the work group, to report the number of teacher preparation programs with low passing rates on the assessment, and to help teacher preparation programs better prepare teacher candidates.

The commission also would be required to maintain a secondary passing standard for the assessment that takes into consideration other evidence of a teacher candidate's performance.

— Diana Lambert

Preregistering students to vote: Assembly Bill 2724

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Under current law, the last two weeks in April and the last two weeks in September are "high school voter education weeks," when people authorized by the county elections official can register students to vote on any high school

campus.

That effort has produced limited success; according to the Public Policy Institute of California, only 37% of eligible voters age 18 to 34 are registered, and they comprise 18% of likely voters, even though they make up 31% of the population.

To boost registration further, Assembly Bill 2724, authored by Assemblymember Eloise Reyes, D-Colton, would require school districts and charter schools to provide information sometime during students' junior year on preregistering to vote and on becoming a student poll worker. Students who preregister will be set to vote when they turn 18.

The intent, though not a requirement, is to time the information distribution during annual high school voter education weeks.

— John Fensterwald

English Learner Roadmap implementation: Assembly Bill 2074

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If signed by the governor, Assembly Bill 2074 will require the California Department of Education to create a state implementation plan for the English Learner Roadmap Policy, which was first approved in 2017.

In order to come up with the plan, the department will have to convene an advisory committee made up of school districts, county offices of education, teachers, parents of English learners and nonprofit organizations with experience implementing the English Learner Roadmap Policy. The department will have to submit the final implementation plan to the Legislature by Nov. 1, 2026, and the plan will have to include clear goals. The department would then have to report annually on which districts, county offices of education and charter schools are meeting those goals.

A lack of funding changed the scope of the bill. An earlier version would have also created three positions in the state Department of Education to develop, plan and then support districts to implement the English Learner Roadmap Policy. However, those positions were cut from the bill by the Senate Appropriations Committee due to costs. A separate bill that would have created a new grant program to implement the road map, Assembly Bill 2071, failed to pass the Senate Appropriations Committee because there was no money allocated in the budget. There have been two $10 million grant programs to help districts implement the road map, since it was first approved in 2017, but participation was optional.

— Zaidee Stavely

Juvenile court schools and chronic absenteeism: Assembly Bill 2176

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Students incarcerated in California's juvenile facilities have some of the highest rates of chronic absenteeism. In recent years, court schools inside several juvenile facilities statewide have reported chronic absences at over 15%, with some reaching higher than 60%.

Assembly Bill 2176 would require the development of an annual report on chronic absenteeism rates in the juvenile justice system and an investigation into why chronic absences are occurring. The Office of Youth and Community Restoration, the state office overseeing the state's juvenile justice system, would be required to lead these efforts, along with providing assistance to probation departments to address chronic absences.

"[c]hildren in California have a constitutional right to an equitable education, but some incarcerated youth are

excluded from school because of punishments or policies imposed by officers at the juvenile hall, and thus denied their constitutional right," wrote Marc Berman, D-Menlo Park, who authored the bill.

At some juvenile facilities, probation department actions and policies have contributed to the high chronic absence rates. A 2023 report by the national Youth Law Center, for example, found that probation staff in Los Angeles County had a practice "of barring entire living units of young people from attending school if one of them misbehaved."

The bill would require probation departments to work with county offices of education to provide students access to grade-aligned paper or online coursework if youths' "access to equitable education with their peers" is temporarily suspended.

— Betty Márquez Rosales

Student financial aid for foster youth: Assembly Bill 2508

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Foster youth currently receive an additional $500 toward their CalKids account, California's college savings account program — but only if they are in the first grade when they are identified as foster youth.

If a foster youth happens to be enrolled in any other grade, they do not qualify for the augmented savings amount.

Assembly Bill 2508 seeks to expand eligibility so that all foster youth in first to 12th grades can receive the augmented seed deposit. The bill was introduced by Kevin McCarty, D-Sacramento, and co-authored by Joe Patterson, R-Rocklin.

An EdSource analysis found that just 8.3% of eligible students statewide have accessed their CalKids account. AB 2508 aims to increase enrollment of foster youth by also expanding "marketing and reporting requirements."

To that end, John Burton Advocates for Youth, commonly known as JBAY, has agreed to secure private funding for an outreach campaign to ensure foster youth access their CalKids account.

The bill would require the additional amount be funded through Jan. 1, 2029.

The proposed changes to the current CalKids program are expected to cost approximately $6 million in the first year and about $2.4 million annually thereafter.

Supporters of the bill argue that existing funds can fully cover the proposed changes. A May report from the Legislative Analyst's Office noted that an estimated $17 million remains available from a $25 million one-time general fund allocation for the CalKids program in the 2019-20 budget.

— Betty Márquez Rosales

Undocumented student employment: Assembly Bill 2586

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Undocumented students at California's public colleges and universities would be allowed to work on-campus jobs, regardless of their immigration status, under Assembly Bill 2586.

The bill, which cleared the Legislature and is on Newsom's desk, would prohibit California's public colleges and universities from denying a student an employment opportunity because they failed to provide proof of federal work authorization.

In addition to on-campus jobs, the legislation would also make it possible for undocumented students to access paid internships and research opportunities on campus that they are currently excluded from because of their immigration status.

"We fought for this bill because we deserve an equal chance to thrive in what has always been known as the land of opportunity. This bill is about fairness and ensuring that all students have access to the opportunities they need to succeed. We're proud to see it move forward and urge Governor Newsom to sign it into law," Jeffry Umaña Muñoz, a graduate student at Cal State LA, said in a statement.

Supporters of the legislation have argued that a federal statute banning the hiring of undocumented persons does not apply to states, and that California's public college and university systems are state entities.

The passage of the legislation comes after the University of California considered but ultimately rejected a policy that would have allowed for the hiring of undocumented students. UC leaders at the time said the proposal carried too many legal risks.

— Michael Burke

Banning legacy and donor admissions: Assembly Bill 1780

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California's private colleges and universities would be banned from considering an applicant's donor connections or legacy status when making admissions decisions under Assembly Bill 1780.

California's public university systems, the University of California and California State University, already do not give admission preference to applicants with legacy or donor ties. But some of the state's private nonprofit colleges have acknowledged considering an applicant's donor or legacy connections.

If the legislation is signed into law, the state's private nonprofit colleges would be required to report annually to the Legislature detailing their compliance with the law. The bill was stripped of original language that would have prohibited those colleges from receiving state Cal Grant funding if they were in violation of the law.

— Michael Burke

Community college nursing baccalaureate programs: Senate Bill 895

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Up to 10 community college districts in California would be allowed to offer bachelor's degrees in nursing under Senate Bill 895.

Under current law, California's community colleges are allowed to offer bachelor's degrees, but only in programs not offered by the state's other universities. That bans them from offering bachelor's degrees in nursing, since the California State University and some private universities offers those degrees.

But this bill would make an exception and allow the state chancellor's office for the community college system to select 10 districts to offer those nursing degrees. The legislation is opposed by CSU.

Proponents of the legislation say it is needed because of workforce shortages that the state faces in nursing.

— Michael Burke

Homeless and foster youth: Assembly Bill 2137

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Assembly Bill 2137 includes three provisions. The first pertains to Foster Youth Services Coordinating Programs, which coordinate identification and education services between school districts and county child welfare agencies. The bill, if signed by the governor, would permit the coordinating programs to provide mentoring, tutoring, counseling or other services without the permission of a student's district, which currently is required.

The second provision would require districts to notify coordinating programs when foster youths opt out of Free Application for Federal Student Aid and CA Dream Act applications. The coordinating programs can then provide "additional intervention" and "adequate guidance."

The third provision would address the under-identification of students experiencing homelessness by requiring districts to outline how they would identify homeless students when they represent fewer than 10% of socioeconomically disadvantaged students.

— Betty Márquez Rosales

Community college adjunct faculty: Assembly Bill 2277

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Assembly Bill 2277 would allow part-time faculty at community colleges to work up to 85% of a full-time teaching load, including teaching, preparation time and meetings. It would require districts to reach agreement on the workload through collective bargaining.

Adjuncts have long sought pay for nonteaching work such as meeting with students and grading.

"Allowing part-time faculty to teach a higher percentage of a full-time workload will allow consolidation of work at fewer locations, reduce commutes, and facilitate increased on-campus presence to better serve students," John Martin, chair of the California Part-Time Faculty Association told lawmakers in a statement last week urging support for the bill. It passed the Assembly 75-1 and the Assembly Senate 40-0.

Gov. Gavin Newsom has twice vetoed similar bills, citing concerns that higher teaching loads could trigger some adjuncts to receive health insurance under the Affordable Care Act, burdening college districts. Martin, told lawmakers that because the average workloads will be less than 30 hours per week, "health care benefits will not be required."

— Thomas Peele

Title IX bill package

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Bills in a package aimed at strengthening Title IX protections in higher education have advanced to the governor's desk.

AB 1790, AB 2608 and AB 2987 have already been signed into law by the governor. Last week, eight more bills were passed by the Legislature and now await Gov. Gavin Newsom's signature.

One measure already signed into law requires Cal State to implement state audit recommendations. Two other bills approved by the governor, which are requirements for Cal State and California Community Colleges and requests for the University of California, make changes to campus sexual harassment training and ask the schools to provide

timely updates about the outcomes of sex discrimination cases to the people involved.

Among the other bills ready for the governor's go-ahead are AB 1905, which prohibits retreat rights for employees found to have committed sexual harassment; SB 1166, which establishes annual reports on sexual harassment complaints at public universities and colleges; and AB 2407, which requires regular state audits of how all three institutions of higher education in California are addressing sexual harassment.

— Amy DiPierro

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